

no vacancy for which the appointment could lawfully be made. The motion papers disclose no interest upon the part of the petitioner other than that of a citizen and a member of the bar of this Court. That is insufficient. It is an established principle that to entitle a private individual to invoke the judicial power to determine the validity of executive or legislative action he must show that he has sustained or is immediately in danger of sustaining a direct injury as the result of that action and it is not sufficient that he has merely a general interest common to all members of the public. *Tyler v. Judges*, 179 U. S. 405, 406; *Southern Ry. Co. v. King*, 217 U. S. 524, 534; *Newman v. Frizzell*, 238 U. S. 537, 549, 550; *Fairchild v. Hughes*, 258 U. S. 126, 129; *Massachusetts v. Mellon*, 262 U. S. 447, 488. The motion is denied. *Mr. Albert Lévytt, pro se.*

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No. —, original. EX PARTE PATRICK HENRY KELLEY. Motion for hearing on the title of Mr. Justice Black as a member of this Court. Decided October 11, 1937. *Per Curiam*: The motion is denied. *Ex parte Albert Lévytt, supra.* *Mr. Patrick Henry Kelley, pro se.*

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No. 99. EUREKA PRODUCTIONS, INC. v. LEHMAN, GOVERNOR, ET AL. Appeal from the District Court of the United States for the Southern District of New York. Decided October 11, 1937. *Per Curiam*: The motion of the appellees to affirm is granted and the order denying an interlocutory injunction is affirmed. (1) *Alabama v. United States*, 279 U. S. 229, 231; *United Gas Co. v. Public Service Comm'n*, 278 U. S. 322, 326; *National Accounting Co. v. Dorman*, 295 U. S. 718. (2) *Mutual Film Corp. v. Ohio Industrial Comm'n*, 236 U. S. 230, 240, 241; *Mutual Film Corp. v. Kansas*, 236 U. S. 248, 258. *Mr. Henry Pearlman* for appellant. *Mr. Henry Epstein* for appellees. Reported below: 17 F. Supp. 259.